

Court No. - 21

Case :- WRIT - C No. - 31835 of 2024

Petitioner :- Pravesh Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sunil Kumar Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

At the request of counsel for the petitioner, adjourned to 03.10.2024 as a fresh case.

Order Date :- 23.9.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 31835 of 2024

Petitioner :- Pravesh Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sunil Kumar Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikas Budhwar,J.

1. Learned counsel for the respondent-Electricity Department has placed on record the instructions received by him from respondent no.2. It reveals that a notice of provisional assessment was sent to the petitioner on 1.3.2024 fixing 16.3.2024, as the date for hearing. The documents produced before the Court does not comprise of any order of final assessment, but only a notice for recovery by treating the provisional assessment to be final.

2. Repeatedly, this Court has observed that the procedure prescribed under the U.P. Electricity Supply Code, 2005 is to be strictly followed, and the Managing Director of the Discom has also issued circular in this regard. However, it seems that concerned Executive Engineer has failed to observe the procedure prescribed.

3. Let the matter be placed before the Managing Director of the concerned Discom for examining whether there was any procedural irregularity in issuing recovery notice, and he will file his affidavit disclosing the complete facts.

4. Put up as fresh on 18.11.2024.

5. Sri Anuj Tripathi, Advocate, holding brief of Sri Alok Mishra, counsel appearing for the respondent, undertakes to communicate

the instant order to the Managing Director of the concerned Discom for its due compliance.

6. In the meanwhile, the recovery in pursuance to the impugned recovery notice shall remain in abeyance.

Order Date :- 18.10.2024

CS/-

(Vikas Budhwar, J.)

(Manoj Kumar Gupta, J.)

Court No. - 29

Case :- WRIT - C No. - 31835 of 2024

Petitioner :- Pravesh Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sunil Kumar Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Vivek Kumar Birla,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard Sri Sunil Kumar Yadav, learned counsel for the petitioner, Sri Alok Mishra, learned counsel appearing for the respondent-Discom authority and learned Standing Counsel for the State-respondent.

2. On 08.10.2024, a detailed order passed by this Court, is quoted as under:

"1. Learned counsel for the respondent-Electricity Department has placed on record the instructions received by him from respondent no.2. It reveals that a notice of provisional assessment was sent to the petitioner on 1.3.2024 fixing 16.3.2024, as the date for hearing. The documents produced before the Court does not comprise of any order of final assessment, but only a notice for recovery by treating the provisional assessment to be final.

2. Repeatedly, this Court has observed that the procedure prescribed under the U.P. Electricity Supply Code, 2005 is to be strictly followed, and the Managing Director of the Discom has also issued circular in this regard. However, it seems that concerned Executive Engineer has failed to observe the procedure prescribed.

3. Let the matter be placed before the Managing Director of the concerned Discom for examining whether there was any procedural irregularity in issuing recovery notice, and he will file his affidavit disclosing the complete facts.

4. Put up as fresh on 18.11.2024.

5. Sri Anuj Tripathi, Advocate, holding brief of Sri Alok Mishra, counsel appearing for the respondent, undertakes to communicate the instant order to the Managing Director of the concerned

Discom for its due compliance.

6. In the meanwhile, the recovery in pursuance to the impugned recovery notice shall remain in abeyance."

3. In the aforesaid order, the Managing Director of the concerned Discom authority was directed to look into the matter and file his own affidavit disclosing the complete facts.

4. Admittedly, although learned counsel for the concerned Discom authority has placed before this Court certain facts, however, the affidavit of the Managing Director of the concerned Discom-authority, has not been filed.

5. He prays for and is granted time to comply with the order of this Court as narrated in paragraph 3 of the above quoted order.

6. Put up this case as fresh on **09.12.2024** showing the name of Sri Alok Mishra as counsel for the respondent.

Order Date :- 18.11.2024

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Court No. - 29

Case :- WRIT - C No. - 31835 of 2024

Petitioner :- Pravesh Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sunil Kumar Yadav

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Vivek Kumar Birla,J.

Hon'ble Dr. Gautam Chowdhary,J.

1. Heard Sri Sunil Kumar Yadav, learned counsel for the petitioner, Ms. Uttara Bahuguna, learned Additional Chief Standing Counsel appearing for the State respondents and Sri Alok Mishra, learned counsel appearing for the respondent no. 2.
2. Present petition has been filed for setting aside the notice dated 20.4.2024 issued by the respondent no. 2.
3. Pursuant to the order dated 18.11.2024 Sri Alok Mishra has filed personal affidavit of Managing Director, which is taken on record. He pointed out that the petitioner has deposited the entire amount and as such present petition has become infructuous.
4. Learned counsel for the petitioner agrees that the present petition has become infructuous.
5. Accordingly, present petition stands dismissed as having become infructuous.

Order Date :- 9.12.2024

Lalit Shukla